

Court No. - 46

Case :- WRIT - C No. - 8572 of 2020

Petitioner :- Anurag Bansal

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Rakesh Chandra Tiwari, Sushil Jaiswal

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Naheed Ara Moonis, J.

Hon'ble Jayant Banerji, J.

Heard the learned counsel for the petitioner, Sri Pranjal Mehrotra, learned counsel for the respondent nos. 2, 3 and 4. The learned Standing counsel has accepted notice on behalf of the respondent nos. 1, 5 and 6.

This writ petition has been filed with the following prayer;

(i) Issue a writ, order or direction in the nature of certiorari to quash the recovery citation dated 23.7.2019 passed by the respondent no. 6 in lieu of electricity dues to a tune of Rs. 23,23,562/- along with collection charges.

(ii) Issue any other suitable writ, order or direction in the nature of mandamus to accept the amount in easy instalments without collection charges and give correct statement of bill."

The contention of the learned counsel for the petitioner is that he had purchased the property in which the electricity connection exists from one Pradeep Kumar Kaushal and the amount claimed in the certificate of recovery dated 23.9.2019 is being sought to be recovered from him. It is contended that the petitioner is ready to deposit the amount in easy instalments.

However, the learned counsel for the respondents have opposed the writ petition on the ground that in case the petitioner is aggrieved, he may approach the authority concerned under Section 6.5 of U.P. Electricity Supply Code, 2005. On perusal of the records it appears that the recovery certificate was issued for the sum of Rs. 23,23,602 and despite service of demand notice no substantial amount has been deposited.

Under the circumstances of the case and in view of

the objection raised by the learned counsel for the respondents, if the petitioner is so advised, he may pursue his remedy in accordance with law under the provision of U.P. Electricity Supply Code, 2005.

However, under the and facts and circumstance of the case, we are not inclined to interfere in this writ petition. Accordingly, the writ petition is dismissed.

Order Date :- 17.3.2020

Shahnawaz